

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.,
COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

MOTION FOR DEFAULT AGAINST LAS FREIGHT SYSTEM LTD.

The Complainant, CMI Distribution, Inc. (“CMI”) hereby moves, pursuant to 46 C.F.R. § 502.62(b)(6) for entry of default against Las Freight System Ltd. (“Las Freight”) based upon its failure to answer the Verified Complaint in this proceeding.

1. CMI filed a Verified Complaint naming Las Freight as a Respondent. The Complaint alleged in relevant part that Las Freight is a Taiwanese private limited company with its principal place of business at 10/FI., No. 44 Lane, 11 Kuang Fu N. Road, Taipei, Taiwan. Complaint at para4. The Complaint further asserted that at all relevant times to the Complaint, Las Freight was an OTI within the meaning of the Shipping Act, 46 U.S.C. § 40102(19), subject to regulation by the FMC. Las Freight is a registered NVOCC with FMC Organization number 13673.

2. Pursuant to 46 C.F.R. § 502.62(b)(1), a respondent must file an answer to a Complaint with the Commission within 25 days after the date of service by the Commission.

3. Las Freight was served with the Complaint by the Commission on May 31, 2017. Although more than 25 days has passed, Las Freight has not responded to the Complaint.

4. As reflected in Exhibit 1 to CMI's Complaint, CMI was assessed demurrage charges in the amount of \$405,844.05 for the shipments at issue.

5. Failure of a party to file an answer to a Complaint will be deemed to have constituted a waiver of that party's right to appear and contest the allegations of the Complaint. 46 C.F.R. § 502.62(b)(6)(i).

6. A Complainant may move for an initial decision on default if a respondent fails to answer a Complaint. 46 C.F.R. § 502.62(b)(6)(ii).

WHEREFORE, CMI seeks entry of an initial decision of default against Las Freight System Ltd. in the amount of \$405,844.05.

Respectfully submitted,



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Attorneys for CMI Distribution, Inc.

July 10, 2017

CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the foregoing document was delivered to the following address by electronic transmission, this 10th day of July 2017:

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